

Smt.K.P.Maithri vs R.B.Murali on 11 January, 2023

Bench: Alok Aradhe, S Vishwajith Shetty

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF JANUARY 2023

PRESENT

THE HON'BLE MR. JUSTICE ALOK ARADHE

AND

THE HON'BLE MR. JUSTICE S.VISHWAJITH SHETTY

M.F.A.No.4660/ 2015(FC)

BETWEEN:

SMT. K.P. MAITHRI
W/O R.B. MURALI
AGED ABOUT 35 YEARS
R/AT NO.29, MIG 2ND STAGE
KHB COLONY
BASAVESHWARANAGAR
BANGALORE - 560 079. ...APPELLANT

(BY SRI SHRISHAIL A HUBLI, ADV.)
AND:

R.B. MURALI
S/O RANGANATHA
AGED ABOUT 36 YEARS
R/AT NO.15, 5TH MAIN ROAD
INDISTRIAL TOWN EXTN
KAMAKSHIPALYA
BANGALORE - 560 079. ...RESPONDENT
(BY SRIHIMA KIRANA, ADV., FOR
SRI PRAKASH T. HEBBAR, ADV.)

THIS MFAN IS FILED U/S 19(1) OF THE FAMILY COURTS
ACT, R/W SEC.28 OF THE HINDU MARRIAGE ACT, AGAINST
THE JUDGMENT AND DECREE DATED 07.04.2015 PASSED IN
M.C.NO543/2010 ON THE FILE OF THE III ADDITIONAL
PRINCIPAL JUDGE, FAMILY COURT, BANGALORE, ALLOWING
THE PETITION FILED U/S 13(1)(ia) & (ib) OF HINDU
MARRIAGE ACT.

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THIS APPEAL COMING ON FOR FINAL HEARING THIS

DAY, VISHWAJITH SHETTY J. ,
FOLLOWING:

DELIVERED THE

JUDGMENT

This miscellaneous first appeal under Section 19(1) of the Family Courts Act, 1984, is filed assailing the judgment and decree dated 07.04.2015 passed by the III Addl. Prl. Judge, Family Court, Bengaluru, in M.C.No.543/2010.

2. Heard the learned Counsel for the parties and also perused the material available on record.

3. Brief facts of the case leading to filing of this appeal are, the marriage of the appellant with the respondent was solemnized on 22.01.2007. From the wedlock, the couple have a son who was born on 03.06.2009. It is the case of the respondent that the appellant was not happy with the marriage, and therefore, she was picking up quarrels for silly reasons and she used to abuse him in filthy language. The appellant allegedly also assaulted the respondent on certain occasions and with a fond hope that she will mend her ways, the respondent had tolerated the ill- treatment meted out on him by the appellant. It is his further case that the appellant left the matrimonial home voluntarily on 20.02.2007 and started living with her parents and the efforts made by the respondent to bring her back were in vain. However, after the respondent made arrangements for a separate rented house, the appellant joined him in the said house and during their stay in the rented house, the appellant conceived and she had gone to her parents house for delivery. After the birth of the male child on 03.06.2009, the appellant has refused to join the respondent in the matrimonial home and the efforts made by the respondent in this regard had failed, and therefore, he had filed a petition under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 (for short, 'the Act') before the Family Court, Bengaluru, with a prayer for dissolution of marriage by a decree of divorce.

4. In the said proceedings, the appellant had entered appearance, but she had not filed her statement of objections nor had she contested the case before the Family Court. The respondent examined himself as PW-1 and got marked three documents as Exs.P-1 to P-3. The Family Court vide the impugned judgment and decree allowed the petition and dissolved the marriage between the parties. Being aggrieved by the same, the appellant is before this Court.

5. Learned Counsel for the appellant submits that the respondent had approached the appellant for the purpose of settlement and it is under these circumstances, the matter was not contested by the appellant before the Family Court. He submits that the respondent has neglected the appellant and her son and he has not provided any maintenance to them till date. He submits that after the decree of divorce was granted by the Family Court, the respondent allegedly has remarried and has got two children from the second marriage, and therefore, at this point of time, the appellant would not be in a position to stay with the respondent. He, therefore, submits that the appellant's case may be considered for grant of permanent alimony for the purpose of maintenance of herself and the minor son.

6. Per contra, learned Counsel for the respondent submits that the evidence of the respondent before the Family Court remained uncontroverted, and therefore, the Family Court was justified in

allowing the petition. He submits that the appellant was not interested in the marriage, and therefore, she had voluntarily left the company of the respondent along with the child. However, he denies that the respondent has remarried and he has got children from the said marriage. He submits that the respondent is in living in relationship with one Smt. Rukmini and from the said relationship, he has got two children.

7. From the perusal of the material available on record, it is seen that the respondent had approached the Family Court seeking a decree of divorce under Section 13(1)(ia) & (ib) of the Act. After the Family Court had allowed the petition vide the impugned judgment and decree, the respondent allegedly has remarried and has two children from the said wedlock. The respondent, on the other hand, has denied the second marriage, but he has candidly admitted that he is in relationship with a lady and has got two children from the said relationship. The material on record would also go to show that the parties to this appeal are residing separately for the last nearly 13 years. Under the circumstances, as rightly contended by the learned Counsel for the appellant, the question of asking the parties to this appeal to stay together and lead a married life would not arise and the only question that may be required to be considered by us is with regard to the quantum of permanent alimony that is required to be awarded to the appellant and her son for their future maintenance.

8. The son born to the couple is now aged about 13 years. It is not in dispute that the respondent has not provided any maintenance either to the appellant or to his son till date. The respondent has filed his affidavit with regard to his assets and liabilities and has stated that he is a BBM Graduate and also has done his Diploma in Computer Science. He has stated that he was working in ANZ Operations and Technology Pvt. Ltd., from 2013 to 2021. He has also stated that he is getting a rental income of Rs.50,000/- per month and he has stated that he has got a residential building with ground plus two floors at Rajajinagar, Bengaluru, and a vacant site measuring 30' x 50' situated at Chunchunkuppe village, Tavarekere Hobli, Magadi Taluk. In his affidavit, he has stated that there are four dependents on him viz., his mother, the aforesaid Rukmini and the two children born to her. He has also stated that he is paying a sum of Rs.28,000/- per month towards EMI for the loans borrowed by him. He has stated that the appellant is a post-graduate and he has admitted that she is presently staying with her parents. He has not stated anything with regard to her independent source of income.

9. It is trite law that whenever the marital tie between the parties is disrupted by a decree of divorce, depending upon the facts and circumstances of the case, it is the bounden duty of the court to award appropriate amount of alimony/maintenance to the wife and children for the purpose of providing them future maintenance.

10. The Hon'ble Supreme Court in the case of RAMESH CHANDRA RAMPRATAPJI DAGA VS RAMESHWARI RAMESH CHANDRA DAGA REPORTED IN AIR 2005 SC 422 has held that when by court intervention under the Hindu Marriage Act, affectation or disruption to the marital status has come by, at that juncture, while passing the decree, it undoubtedly has the power to grant permanent alimony or maintenance, if that power is invoked at that time.

11. The Division Bench of this Court in the case of AMIT VINAY WELANGI -VS- MRS.NUPUR AMIT WELANGI - AIR 2018 KAR 156 has held that while granting a decree of divorce in favour of the husband, permanent alimony can be granted in favour of a wife even if she has not filed an application.

12. From the affidavit of the respondent, it is seen that he is a qualified person who was working in a private company. However, his income from such an employment is not disclosed in the affidavit. The respondent has admitted that he has got a rental income of Rs.50,000/- per month and he has also stated that he owns a residential building with ground plus two floors at Rajajinagar, Bengaluru, and another vacant site measuring 30' x 50' at Tavarekere Hobli, Magadi Taluk. He has stated that he is paying a monthly EMI of Rs.28,000/- per month in respect of personal loans borrowed by him and he needs a sum of Rs.10,000/- towards his personal expenses and another sum of Rs.15,000/- to Rs.30,000/- for meeting the expenses of his dependents. Therefore, it can be safely presumed that in addition to the monthly rental income of Rs.50,000/-, the respondent is also having other source of income. The respondent has suppressed his income from his employment when he was working in ANZ Operations and Technology Pvt. Ltd. The respondent has shown the name of Smt. Rukmini and her two children as his dependents in the affidavit filed by him, and therefore, we find some force in the allegation made by the appellant that after the decree of divorce was granted by the Family Court, the respondent has remarried and has two children from the said wedlock.

13. Be that as it may, the fact remains that the respondent has not provided any maintenance to the appellant and her son for the last 13 years. The son born to the appellant and the respondent who is aged about 13 years is required to be educated and for the said purpose, the appellant who is taking care of the son would require a substantial amount of money. Though the respondent has filed his affidavit regarding the assets and liabilities, the appellant has failed to file any such affidavit regarding her assets and liabilities and a statement is made by her advocate that in view of the dispute between the parties which has led to filing of multiple litigations, the appellant has become cynical and she has not come forward to file her affidavit.

14. Though in normal circumstances, we would have drawn an adverse inference against the appellant, in view of the peculiar facts and circumstances of the case, we do not intend to do so and on the other hand, we are of the considered view that if the respondent is directed to pay a fair and reasonable amount towards permanent alimony to the appellant, it would meet the ends of justice.

15. In view of the aforesaid analysis made by us regarding the income, assets and liabilities of the respondent, we are of the considered view that if the respondent is directed to pay an amount of Rs.15 lakhs as permanent alimony to the appellant, it would meet the ends of justice. Accordingly, the following order:

16. The appeal is disposed of. The respondent is directed to pay a sum of Rs.15 lakhs to the appellant towards permanent alimony, within a period of three months from the date of receipt of the copy of this judgment, failing, which the respondent shall pay interest at the rate of 6% per annum till payment.

Sd/-

JUDGE Sd/-

JUDGE KK